

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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CHRISTEN CONYERS,

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, and Det. ISAAC MOULTRY

**JURY TRIAL
DEMANDED**

Defendants.
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Plaintiff **CHRISTEN CONYERS**, through his attorney, **DAVIS NDANUSA IKHLAS & SALEEM LLP**, as and for his complaint against the Defendants herein alleges the following upon information and belief:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of Defendants' violation of Plaintiff's rights as secured by the Civil Rights Act 42 U.S.C. § 1983 and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on or about the 27th day of March 2018, at 7:00pm at 2575 Broadway, New York, New York, 10025 members of the NYC Police Department, in particular Officer Ramon Gutierrez, placed Claimant under arrest without probable cause. That the alleged probable cause for the arrest was based on coercion, manipulation and duress on the part of the Defendant Det. Isaac MOULTRY, namely through manipulation of the alleged victim and the destruction of evidence. That Plaintiff was arraigned on or about March 28, 2018 and later indicted under indictment number #01083/2018. Plaintiff was unable to post bail and remained

incarcerated until July 31, 2019. That on July 31, 2019, after a jury trial, the jury returned a verdict of not guilty. At no time relevant herein did Plaintiff commit a crime, or violate the law in any manner, nor did Defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner. Defendants initiated a criminal prosecution against plaintiff without probable cause by falsifying allegations against plaintiff and communicating the false allegations to the Kings County District Attorney's Office. Plaintiff was deprived of his constitutional and common law rights when the individual Defendant unlawfully searched, unlawfully detained, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process right to a fair trial, and unlawfully searched and seized Plaintiff in violation of the Fourth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES AND NATURE OF ACTION

2. Plaintiff **CHRISTEN CONYERS** is a resident of the Borough of Manhattan, County of New York, City and State of New York.
3. At all times hereinafter mentioned, Defendant, **CITY OF NEW YORK** (hereinafter "CITY"), was and still is a municipal corporation existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department ("NYPD"), and their employees.
4. At all times hereinafter mentioned, Defendant **ISAAC MOULTRY** ("MOULTRY"), Shield 3250, was employed by the City of New York as a detective with the NYPD and is being sued in his individual and official capacity.

5. At all times hereinafter mentioned, Defendant, CITY, employed persons as police officers and said persons were so employed as police officers by and through the NYPD.
6. Defendant CITY and its agency, the NYPD, assume the risks incidental to the maintenance of a police force and the employment of police officers and is responsible for the training and supervision of police personnel and were also responsible for enforcing the regulations and policies of the New York City Police Department and for ensuring that New York City Police Department employees obey, employ and implement regulations and policies.
7. At all times relevant herein, the individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct that represent official policy or governmental custom of the Defendant CITY
8. The notice of claim set forth the name and post office address of the claimant, and of the claimant's attorney, the nature of the claim, the time when, the place where and the manner in which said claims arose, and the injuries and damages sustained herein as far as then practicable.
9. This action is brought for damages to remedy the violations of Plaintiff's constitutional rights under the United States Constitution, under color of state law, specifically the Fourth and Fourteenth Amendments, and for false arrest, malicious prosecution, intentional infliction of emotional distress and negligence.
10. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York and seeks declaratory relief, damages and other legal and equitable relief pursuant to 42 U.S.C. §§ 1983 and 1988.

JURISDICTION AND VENUE

11. This is a civil rights action seeking damages for the Defendants' violations of Plaintiff's rights, privileges, and immunities under the United States Constitution, as amended, and the Civil Rights Act of 1871, 42 U.S.C. § 1983, and New York State common law.
12. Jurisdiction of this Court and venue is proper as the acts complained about happened in the State of New York, County of New York.
13. Plaintiff has fully complied with the administrative prerequisites to the filing of this action under state law. On the 20th day of September 2019 Plaintiff filed a notice of claim with Defendants CITY and NYPD. A statutory 50-h hearing was held pursuant General Municipal Law § 50(e) wherein the Defendants examined the Plaintiff with regard to the claims of this action.
14. Thirty (30) days have elapsed since service of Plaintiff's Notice of Claim and Defendants have refused to adjust or settle this action.
15. This action was commenced within one year and ninety days after the happening and completion of the event upon which the claim is based.

FACTS

16. Plaintiff alleges that on or about the 27th day of March 2018, at 7:00 PM at 2575 Broadway, New York, New York, 10025 members of the NYC Police Department, in particular Officer Ramon Gutierrez, placed Claimant under arrest without probable cause.
17. That the alleged probable cause for the arrest was based on coercion, manipulation and duress on the part of the Defendant Det. MOULTRY, namely through manipulation of the alleged victim, Elijah Palmgren, and the destruction of evidence.
18. Detective MOULTRY illegally falsified his DD5 NYPD report when he recorded that he

heard the complainant's 911 recording say the complainant was stabbed inside of apartment 2F, where one of the criminal Defendants, Dana Ashmore, lived, by an unknown perpetrator.

19. The 911 recording actually had no mention of 2F and no probable cause to link it or the Defendants from the criminal case, including the Plaintiff CHRISTIAN CONYERS, to the victim and incident.
20. When MOULTRY interviewed the victim Elijah Palmgren, Palmgren stated only one person was involved with his attack and suggested that Dana Ashmore was possibly involved and never made any mention of Plaintiff CONYERS.
21. That MOULTRY then filed a report, that later led to Dana's arrest, that named a possible suspect named Damien instead of Dana. Until trial, even with multiple chances, MOULTRY inexplicably never filed an amended report correctly naming Dana as the suspect instead of Damien.
22. That Palmgren then sent Defendant MOULTRY a photo identification of Dana which happened to also portray the Plaintiff CONYERS as well.
23. That MOULTRY then incompetently and without probable cause decided to include CONYERS as an accomplice to the victim's attack.
24. That Defendant MOULTRY coerced the victim, Palmgren, to falsely identify Plaintiff CHRISTIAN CONYERS as a possible culprit in the attack against Palmgren despite Palmgren's protest against such incrimination.
25. That MOULTRY, in addition to the coercion, offered to assist Palmgren with Palmgren's open gun case if Palmgren would falsely identify CONYERS as a culprit in the attack against Palmgren.

26. With this coerced testimony and identification, MOULTRY lacked a need to properly investigate and question other witnesses. Trial record demonstrates that MOULTRY poorly investigated the underlying criminal matter. It is alleged here that MOULTRY had no reason to properly investigate the underlying criminal case because he had already coerced Palmgren to falsely identify CONYERS as the culprit.
27. Defendant MOULTRY, based on this coerced false information and without thought, swore out two different felony complaints, one on March 23rd stating that Dana Ashmore committed the crime and, incompetently, a second report on March 28th stating that Christian CONYERS was also involved and inexplicably, based on no evidence, a never before mentioned third unknown suspect.
28. Defendant MOULTRY has a duty to preserve any and all evidence including text messages in regard to this case.
29. Defendant MOULTRY deleted all texts between Palmgren and him prior to February 17th. MOULTRY, after criminally losing the texts, asked only for the victim to resend the photograph, depicting Dana and by chance the Plaintiff, on which he based his lacking probable cause to charge CONYERS.
30. That MOULTRY also made no requests for any of the other texts that theoretically involved Palmgren's testimony against CONYERS and the probable cause he would have had against him. Plaintiff alleges that MOULTRY purposely did not ask Palmgren to resend everything, which for evidence purposes MOULTRY should legally have records of, because these texts instead included statements where the victim tried recanted his coerced allegations against CONYERS.
31. Elijah Palmgren, in response to the coercion and MOULTRY's misconduct in disregarding

and deleting his texts sent affidavits of facts to the DA's office and the Courts that recanted any of his testimony naming Christian CONYERS as a suspect and that such testimony was made under threat, duress, and coercion of MOULTRY assisting with his open gun charge.

32. Plaintiff was arraigned on or about March 28, 2018 and later indicted under indictment number #01083/2018. Plaintiff was unable to post bail and remained incarcerated until July 31, 2019.
33. That on July 31, 2019, after a jury trial, the jury returned a verdict of not guilty. At no time relevant herein did Plaintiff commit a crime, or violate the law in any manner, nor did Defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.
34. Defendants initiated a criminal prosecution against plaintiff without probable cause by falsifying allegations against plaintiff, complete police incompetence on MOULTRY'S part, and communicating the false allegations to the Kings County District Attorney's Office.
35. Plaintiff was deprived of his constitutional and common law rights when the individual Defendant unlawfully searched, unlawfully detained, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process right to a fair trial, and unlawfully searched and seized Plaintiff in violation of the Fourth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.
36. That Plaintiff denies being the person alleged to have participated in the stabbing of Elijah Palmgren.
37. That Defendant CITY and its agent falsely claimed that Plaintiff was the alleged

perpetrator.

38. Plaintiff was arraigned for the aforementioned charges for which he pleaded not guilty. Plaintiff denies all of the claims that he engaged in the unlawful conduct.

AS AND FOR A FIRST CAUSE OF ACTION: 42 U.S.C. § 1983 VIOLATION

39. Plaintiff re-allege each of the proceeding causes of action as though fully set forth in each of the subsequent causes of action.
40. That by detaining and imprisoning the Plaintiff, without probable cause or reasonable suspicion, Defendant deprived the Plaintiff of rights, remedies, privileges and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. §1983, including, but not limited to, rights guaranteed by the Fourth and Fourteenth Amendments of the United States Constitution
41. Defendant willfully and intentionally seized, searched, detained and arrested Plaintiff without probable cause, and without reasonable basis to believe such cause existed.
42. Defendant also willfully and intentionally subjected Plaintiff to the criminal process without probable cause to believe that Plaintiff could be successfully prosecuted through the coercion of a witness leading to the making of false, contradictory or materially misleading statements and the destruction of evidence, and did so without a reasonable basis to believe that such conduct was appropriate, reasonable, lawful or necessary.
43. By doing so, the Defendant subjected the Plaintiff to unlawful search and seizure, denial of due process and a fair trial, malicious prosecution and abuse of process, and aided and abetted in violation of Plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution.
44. The Defendant Officer MOULTRY acted under pretense and color of state law and in his

individual and official capacity and within the scope of his employment as a NYPD officer. Said acts by Defendant MOULTRY was beyond the scope of his jurisdiction, without authority of law and in abuse of his powers, and said Defendant acted willfully, knowingly and with the specific intent to deprive the Plaintiff of his constitutional rights secured by 42 U.S.C. § 1983 and by the Fourth and Fourteenth Amendments to the United States Constitution.

45. That by reason thereof, Defendant has violated 42 U.S.C. § 1983 and caused Plaintiff to suffer emotional, physical and economic injuries, mental anguish, incarceration and deprivation of liberty, and the loss of his constitutional rights.
46. That Plaintiff seeks judgment for an amount that is above the jurisdictional limit of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION: MALICIOUS PROSECUTION

47. Plaintiff re-alleges each of the proceeding causes of action as though fully set forth in each of the subsequent causes of action.
48. The acts and conduct of the Defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.
49. That Defendant CITY and Defendant MOULTRY did commence and continue a criminal action against Plaintiff.
50. There was an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
51. That the criminal action and prosecution was commenced without probable cause or belief that said action would be successful by Defendant MOULTRY's aforementioned fabricating allegations, manipulating the alleged victim, and destroying phone text

evidence.

52. That the criminal action was therefore commenced with actual malice.
53. The prosecution and criminal proceedings terminated in Plaintiff's favor.
54. That as a result of the arrest and prosecution, Plaintiff was deprived of his freedom and liberty sufficient to implicate Plaintiff's Fourth Amendment and Fourteenth Amendment rights.
55. All of the foregoing occurred without any fault or provocation on the part of the Plaintiff.
56. Defendant CITY, their officers, agents, servants, and employees were responsible for Plaintiff's detention and imprisonment during this period of time. Defendant CITY as employer of the Defendant Officer MOULTRY, is responsible for his wrongdoing under the doctrine of *respondeant superior*.
57. Defendant MOULTRY acted with a knowing, willful, wanton, grossly reckless, unlawful, unreasonable, unconscionable, and flagrant disregard of the Plaintiff's rights, privileges, welfare, and well-being by fraud, coercion of a witness, destruction of evidence and other police conduct undertaken in bad faith and are therefore guilty of egregious and gross misconduct toward Plaintiff.
58. That by reason thereof, the individual Defendant has violated rights and caused Plaintiff to suffer emotional, physical and economic injuries, mental anguish, incarceration and deprivation of liberty, and the loss of his constitutional rights.
59. As a direct and proximate result of the misconduct, abuse and prosecution detailed above, Plaintiff sustained the damages hereinbefore stated and was imprisoned for a period of more than sixteen months.
60. That Plaintiff seeks judgment for an amount that is above the jurisdictional limit of all

lower courts.

AS FOR A THIRD CAUSE OF ACTION: MONELL

61. Plaintiff re-alleges each of the proceeding causes of action as though fully set forth in each of the subsequent causes of action.
62. All of the acts and omissions by the individual Defendant MOULTRY described above were carried out in his capacity as a police officer and pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the Defendant CITY and its agency, the NYPD.
63. Defendant CITY and the NYPD, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the individual police Defendants' wrongful acts; and/or failed to prevent or stop those acts; and/or allowed or encouraged those acts to continue.
64. The aforementioned customs, practices, procedures and rules of the CITY and the NYPD include, but are not limited to, the following unconstitutional practices:
 - a. Arresting persons known to be innocent in order to meet "productivity goals" (i.e., arrest quotas);
 - b. Falsely swearing out criminal complaints, and/or lying and committing perjury during sworn testimony
 - i. in order to protect other officers; and/or
 - ii. in order to meet said productivity goals; and/or
 - c. Failing to supervise, train, instruct and discipline police officers and encouraging their misconduct;

- d. Discouraging police officers from reporting the corrupt or unlawful acts of other police officers;
 - e. Retaliating against officers who report police misconduct; and
 - f. Failing to intervene to prevent the above-mentioned practices when they reasonably could have been prevented by a supervisor or other agent or employee of the NYPD.
65. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against the CITY:
- a. Schoolcraft v. City of New York, 10-CV-6005 (RWS) (S.D.N.Y.) (police officer who exposed a precinct's policies and practices of illegal quotas for the issuance of summonses and arrests, falsifying evidence and suborning perjury alleges he was arrested and committed to a psychiatric facility in retaliation for exposing said policies and practices to the press);
 - b. Long v. City of New York, 09-CV-6099 (AKH) (S.D.N.Y.); People v. Pogan, 06416- 2008 (Sup. Ct., N.Y. Co.) (officer who purposefully swore out a false complaint and used excessive force is convicted of falsifying police records and was prosecuted for recklessly using physical force; the plaintiff was engaged in expressive conduct, to wit, riding in a Critical Mass bicycle ride, when he was assaulted by the officer);
 - c. Lin v. City of New York, 09-CV-1936 (PGG) (S.D.N.Y.) (officers arrest person lawfully photographing an arrest of a bicyclist in Times Square and swear out a criminal complaint whose facts are contradicted by video evidence; officers also arrest a bystander after refusing an unlawful order to produce identification)
 - d. Colon v. City of New York, 09-CV-0008 (E.D.N.Y.) In an Order dated November 25, 2009, which denied the CITY's motion to dismiss on Iqbal/Twombly grounds, wherein the police officers at issue were fired and prosecuted for falsifying evidence in a purported buy-and-bust operation, the Honorable District Court Judge Weinstein wrote:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officer of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the

present administration – through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department – there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.

- e. *Callaghan v. City of New York*, 07-CV-9611 (PKC) (S.D.N.Y.) (officers accused of falsifying evidence and retaliatory arrests of bicyclists engaged in expressive conduct, to wit, riding in Critical Mass bicycle rides after the 2004 Republican National Convention);
- f. *Williams v. City of New York*, 06-CV-6601 (NGG), 2009 U.S. Dist. LEXIS 94418 (E.D.N.Y.) (officers arrest plaintiff during a “vertical patrol” of a public housing project without probable cause and despite evidence that he had a legitimate reason to be on the premises);
- g. *Dunlop v. City of New York*, 06-CV-0433 (RJS), 2008 U.S. Dist. LEXIS 38250 (S.D.N.Y.) (bystander arrested outside the 2004 Republican National Convention while observing arrests occurring in public; alleges that police destroyed exculpatory evidence by deleting portions of a video which contradict sworn criminal complaint);
- h. *MacNamara v. City of New York*, 04-CV-9216 (RJS) (JCF) (S.D.N.Y.) (evidence of perjured sworn statements systematically provided by officers to attempt to cover-up or justify unlawful mass arrests of approximately 1800 people has been and continues to be developed in the consolidated litigation arising out of the 2004 Republican National Convention);
- i. *Powers v. City of New York*, 04-CV-2246 (NGG), 2007 U.S. Dist. LEXIS 27704 (E.D.N.Y.) (police officer alleges unlawful retaliation by other police officers after testifying about corruption within the NYPD);
- j. *Kunstler v. City of New York*, 04-CV-1145 (RWS) (MHD) (S.D.N.Y.) (group of peaceful anti-war protestors arrested without probable cause and questioned by NYPD about their political beliefs; photographic and video surveillance of the protestors taken due to plaintiff's political beliefs);
- k. *Allen v. City of New York*, 03-CV-2829 (KMW) (GWG) (S.D.N.Y.) (police surround and arrest groups of persons lawfully protesting against the policies of the World Economic Forum; numerous police officers falsely swear that they gave orders to disperse; and, even if they had given such orders, the police provided no place of egress for the protestors to disperse);
- l. *Abujayyab v. The City Of New York*, 15-CV-10080 (S.D.N.Y.) (officers arrest without probable cause and without warning that protesting for the killing of Freddie Gray of Baltimore who died in police custody due to police brutality and excessive force. would lead to arrests, and without providing a reasonable opportunity to disperse)
- m. *Alicea v. The City of New York*, 13-CV-7073 (S.D.N.Y.) (officer made materially false claims to justify arrest and use of excessive force)

- n. *Nonnemann v. City of New York*, 02-CV-10131 (JSR) (AJP), 2004 U.S. Dist. LEXIS 8966 (S.D.N.Y.) (former NYPD lieutenant alleging retaliatory demotion and early retirement after reporting a fellow officer to IAB and CCRB for the officer's suspicionless, racially-motivated stop-and-frisk of a group of Hispanic youth);
- o. *Richardson v. City of New York*, 02-CV-3651 (JG) (CLP) (E.D.N.Y.) (officers fabricated evidence, including knowingly false sworn complaints, and used excessive force against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of suspicion);
- p. *Poulos v. City of New York*, 14-CV-03023 (S.D.N.Y.) (to cover up and conceal unlawful conduct such as excessive force officers took specific action to ensure that Plaintiff would be re-arrested and further falsely imprisoned by falsely claiming that Plaintiff had spit on officer and told him that he was HIV positive.)
- q. *Barry v. New York City Police Department*, 01-CV-10627 *2 (CBM), 2004 U.S. LEXIS 5951 (S.D.N.Y.) (triable issue of fact where NYPD sergeant alleged retaliatory demotion and disciplinary charges in response to sergeant's allegations of corruption within her unit and alleged that the NYPD had an "unwritten but pervasive custom of punishing officers who speak out about police misconduct and encouraging, if not facilitating, silence among officers");
- r. *Gibbs v. City of New York*, 06-CV-5112 (E.D.N.Y) (officer deliberately fabricated witness statements and police reports, withheld material, exculpatory evidence from prosecutors and intentionally failed to conduct an adequate investigation as well as used excessive force to elicit a false confession from plaintiff to charge him with murder and resulted in his incarceration for 19 years)
- s. *Taylor v. City of New York*, 01-CV-5750 (ILG) (MDG) (E.D.N.Y.) (same as *Richardson*, except without the excessive force; judge at the criminal trial acquitting Mr. Taylor noted, on the record, that he had "significant doubt" about the truthfulness of the officers who testified);
- t. *Walton v. Safir*, 99-CV-4430 (AKH), 122 F.Supp.2d 466 (S.D.N.Y. 2000) (factual findings after trial that a 12-year veteran of NYPD was terminated in retaliation for criticizing the racially-motivated policies of the NYPD's Street Crime Unit and for alleging that such policies led to the NYPD shooting death of Amadou Diallo);
- u. *Hilliard v. City Of New York*, 16-CV-1347 (S.D.N.Y.) (Defendant officers intentionally and deliberately gave false statements and/or failed to file accurate or corrective statements that lead to false arrest of a bystander for gambling charges)
- v. *Franklin v. City Of New York*, 16-CV-1937 (S.D.N.Y.) (officers used excessive force against an African American male, a community organizer at Community Voices Heard, without any justifiable cause that resulted in long-lasting pain and injury.)
- w. *Lopez v. The City of New York*, 14-CV-3674 (E.D.N.Y.) (officers searched without probable cause and falsely arrested and charged woman who was present at her child's school based off of false complaints officers knew were false.)

66. Furthermore, the existence of the aforesaid unconstitutional customs and policies,

specifically with regard to “productivity goals,” may be further inferred from the following:

- a. An NYPD transit lieutenant was captured on tape telling officers to make more arrests to meet a captain's order and do more work if they want overtime assignments. "All they care about is ... summonses and arrests and 250s," Lt. Janice Williams said, using police jargon for the NYPD Stop, Question and Frisk reports. She added, "The bottom line is everybody's individual activity is being looked at. "Later in the recording - made during a roll call in 2010 at Transit District 34 in Coney Island - she said only officers with "good productivity" will get the opportunity to work overtime. She also said Capt. James Sheerin wanted every officer to make at least one arrest per month - up from the previous order of one every three months - because crime had spiked and arrest totals were lower than other transit districts.¹
- b. Despite NYPD denying ticket quotas internal notices stayed up for weeks in the roll call room that stated how many tickets to “give drivers for cell phone, seat belt, double-parking, bus stop, tinted window and truck route violations.”²
- c. Capt. Alex Perez, the second in command at the NYPD’s 81st Precinct, testified in a civil matter that arrest numbers are a factor in evaluating an officer’s performance. The jury in the case concluded that the police had a policy “regarding the number of arrests officers were to make that violated plaintiff’s constitutional rights and contributed to her arrest.”³
- d. Since Commissioner James O’Neill took over in 2016, the practice of quotas being enforced on officers has “officially” been banned according to the NYPD. However, officers across the city continue to say it exists if in a more subtle form. A Manhattan lieutenant’s text messages stated, “Apparently we have traffic stat next week,” he says. “Make sure we have the cops handle hazard traffic conditions in their sector. Who ever is in tmrw for patrol I want a traffic initiative in our cpl,” a likely reference to a crash-prone location. An officer who reviewed this text anonymously stated, “He’s ordering them nicely to go and find those summonses. It doesn’t matter how you get them, just get them. We still have a quota. Nothing changes. You still have to pay your rent.” Despite contentions that quotas are not in use by the NYPD it seems the practice has continued.⁴

1 Rocco Parascandola, NYPD Lt. Janice Williams captured on tape pushing for more busts, but brass says there’s no quotas, N.Y. Daily News, March 3, 2011, available at <https://www.nydailynews.com/new-york/nypd-lt-janice-williams-captured-tape-pushing-busts-brass-no-quotas-article-1.116880>

2 James Fanelli, Cops at Brooklyn’s crime-ridden 77th Precinct told to meet quotas for moving violations, memos say, N.Y. Daily News, Nov. 8, 2010, available at http://www.nydailynews.com/ny_local/2010/11/08/2010-11-08_cops_told_to_meet_quotas.html.

3 Oren Yaniv, Court rules that cops do use quotas, woman injured in 2006 arrest settles for \$75,000, N.Y. Daily News, Feb. 19, 2011, available at <https://www.nydailynews.com/news/crime/court-rules-cops-quotas-woman-injured-2006-arrest-settles-75-000-article-1.134856>

4 George Joseph, NYPD Commander’s Text Messages Show How the Quota System Persists, The Appeal, Dec 12, 2018, available at <https://theappeal.org/nypd-commanders-text-messages-show-how-the-quota-system-persists/>.

67. The existence of the aforesaid unconstitutional customs and practices, **specifically with regard to the failure to supervise, train, instruct and discipline police officers and encouraging their misconduct**, are further evidenced, inter alia, by the following:

- a. A recent repeal in the law released sealed records regarding cases of police misconduct. Over 323,000 accusations of misconduct against current and former New York City police officers. The records include all civilian complaints filed since 1985. 81,550 officers, including commissioners, were named. ” The civil liberties union noted that less than 3 percent of the 323,911 complaints resulted in a penalty for officers, 12 of whom had been terminated. Christopher Dunn, the organization’s legal director, said in a statement that the records showed that the Police Department, whose commissioner makes the final decision on disciplinary matters, ‘is unwilling to police itself.’”⁵
- b. Despite Officer Benjamin Gottlieb having substantiated complaints on file received in 2005, 2011, and 2017 for abuse of his authority, his salary continued to increase, and he was promoted first to sergeant in 2007 and to lieutenant in 2014. He is only one officer out of 13 officers that comprise 22 complaints deemed substantiated by the CCRB to warrant disciplinary training or charges. None have been suspended and continue to by NYPD officers and 6 including Gottlieb have been promoted. ⁶
- c. After analyzing misconduct cases reported between 2006-2019 in New York’s 77 precincts and 11 transit districts it was found that “even after adjusting for reported crime volume, many precincts still had “excess” misconduct — higher numbers of complaints and substantiated complaints than one would predict, given reported crime volume.” Further analyzing these precincts it was discovered that precincts with “larger proportions of Black residents had higher levels of excess misconduct complaints, while precincts with larger proportions of non-Hispanic white and Asian residents had lower levels of excess misconduct complaints.” These precincts with more excess misconduct charges were also found to tolerate officers who accumulated more misconduct complaints. "In Precinct 75, the precinct with the highest level of excess misconduct, an officer accused of misconduct between 2006-2019 had on average 6.4 complaints brought against him during that period.”⁷

5 Ashley Southall, 323,911 Accusations of N.Y.P.D. Misconduct Are Released Online, N.Y. Times, Aug. 20, 2020, available at <https://www.nytimes.com/2020/08/20/nyregion/nypd-ccrb-records-published.html>.

6 Stephanie Lai and Raedah Wahid, What happened to NYPD officers who were charged with misconduct? They were promoted or paid more., Columbia Spectator, Sept. 22, 2020, available at <https://www.columbiaspectator.com/news/2020/09/22/what-happened-to-nypd-officers-who-were-charged-with-misconduct-they-were-promoted-or-paid-more/>

7 Anna Harvey, Is Police Misconduct Higher in Majority Black Neighborhoods?, The Crime Report, October 19, 2020, available at <https://thecrimereport.org/2020/10/19/is-police-misconduct-higher-in-majority-black-neighborhoods/>

68. The existence of the aforesaid unconstitutional customs and practices, **specifically with regard to the practice or custom of officers lying under oath, falsely swearing out criminal complaints, or otherwise falsifying or fabricating evidence**, are further evidenced, inter alia, by the following:
- a. Brooklyn District Attorney's Office after reviewing 25 wrongful convictions determined that prosecutorial and police misconduct were responsible for a majority of them. "The magnitude of years lost to wrongful imprisonment in these cases is almost unbearable—together, they add up to 426 years spent in prison," wrote DA Eric Gonzalez in an introduction to the 100-page analysis."⁸
 - b. A police officer in Staten Island was caught by his own body camera to be planting evidence of marijuana in a car. An internal review by the New York Police Department found that no misconduct had occurred. The same officer, a second time, was found to be planting marijuana again during a different traffic stop. The officer remains unsuspended despite the video evidence.⁹
69. The existence of the above-described unlawful de facto policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officer and officials of the NYPD and the CITY.
70. The actions of the individual police Defendant resulted from and were taken pursuant to the above-mentioned de facto policies and/or well-settled and widespread customs and practices of the CITY, which are implemented by members of the NYPD, of engaging in systematic and ubiquitous perjury, tampering of evidence, coercion, both oral and written, to cover-up federal law violations committed against civilians by either themselves or their fellow officers, supervisors and/or subordinates. They do so with the knowledge and approval of their supervisors and commanders who all: (i) tacitly accept

⁸ Rebecca Rosenberg, Brooklyn DA says police misconduct played role in most wrongful convictions, N.Y. Post, July 9, 2020, available at <https://nypost.com/2020/07/09/cop-misconduct-role-in-most-wrong-convictions-brooklyn-da-says/>

⁹ Alice Speri, A New York Police Officer Was Caught on Camera Apparently Planting Marijuana in a Car — for the Second Time, The Intercept, March 18, 2020, available at <https://theintercept.com/2020/03/18/nypd-misconduct-body-cameras-marijuana/>

and encourage a code of silence wherein police officers refuse to report other officers' misconduct or tell false and/or incomplete stories, inter alia, in sworn testimony, official reports, in statements to the CCRB and the Internal Affairs Bureau ("IAB"), and in public statements designed to cover for and/or falsely exonerate accused police officers; and (ii) encourage and, in the absence of video evidence blatantly exposing the officers' perjury, fail to discipline officers for "testilying" and/or fabricating false evidence to initiate and continue the malicious prosecution of civilians in order to cover-up civil rights violations perpetrated by themselves of fellow offices, supervisors and/or subordinates against those civilians.

71. Defendant CITY knew or should have known that the acts alleged herein would deprive the plaintiff of his rights under the Fourth and Fourteenth Amendments to the United States Constitution.
72. Defendant CITY is directly liable and responsible for the acts of the individual police Defendant because it repeatedly and knowingly failed to properly supervise, train, instruct and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulation of the CITY and NYPD, and to require compliance with the Constitution and laws of the United States.
73. Despite knowledge of such unlawful de facto policies, practices and/or customs, these supervisory and policy-making officers and officials of the NYPD and the CITY, have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanction and ratify these policies, practices and/or customs

through their active encouragement of, deliberate indifference to and/or reckless disregard of the effect of said policies, practices and/or customs upon the constitutional rights of persons in the City of New York.

74. The aforementioned CITY policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, pursuant to the aforementioned CITY policies, practices and/or customs, the individual Defendants felt empowered to arrest plaintiff without probable cause and then fabricate and swear to a false story to cover up their blatant violations of plaintiff's constitutional rights. Pursuant to the aforementioned CITY policies, practices and/or customs, Defendants failed to intervene in or report other Defendants' violation of plaintiff's rights or subsequent perjury.
75. Plaintiff's injuries were a direct and proximate result of the Defendant CITY and the NYPD's wrongful de facto policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the Defendant CITY and the NYPD to properly supervise, train and discipline their police officers.
76. Defendants collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers and were directly responsible for the violation of the plaintiff's constitutional rights.
77. That Plaintiff seeks judgment for an amount that is above the jurisdictional limit of all lower courts.

**AS FOR A FOURTH CAUSE OF ACTION:
NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION**

78. Plaintiff re-alleges each of the proceeding causes of action as though fully set forth in each of the subsequent causes of action.
79. The Defendant CITY of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise Defendant, an individual who was unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.
80. The Defendant CITY failed to exercise reasonable care to correct and remove individual police detective MOULTRY from his duty as a Police officer.
81. The negligent hiring, retention, and supervision of the Defendant herein resulted in the malicious prosecution, manipulation of the alleged victim and the destruction of evidence that injured the Plaintiff.
82. That Plaintiff seeks judgment for an amount that is above the jurisdictional limit of all lower courts.

AS FOR A FIFTH CAUSE OF ACTION: GENERAL NEGLIGENCE

83. Plaintiff re-alleges each of the proceeding causes of action as though fully set forth in each of the subsequent causes of action.
84. Defendants owed a duty of care to plaintiff.
85. The above-described conduct of falsely arresting plaintiff and then fabricating allegations by manipulating the alleged victim and destroying evidence against the Plaintiff to justify prosecution is a breach of the duty of care Defendants owed.
86. As a direct and proximate result of the acts alleged above, Plaintiff suffered severe

emotional distress, humiliation, mental anguish, and physical distress.

87. The acts and conduct of the Defendant were the direct and proximate cause of damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed to the Plaintiff by the laws and Constitution of the State of New York.
88. Defendant MOULTRY was at all times an agent, servant, and employee acting within the scope of his employment by the CITY of New York and the New York City Police Department, which are therefore responsible for his conduct.
89. The CITY, as the employer of the Defendant MOULTRY, is responsible for his wrongdoing under the doctrine of *respondeat superior*.
90. As a result of the aforementioned conduct of Defendants, plaintiff sustained injuries including but not limited to emotional and psychological injuries.
91. That Plaintiff seeks judgment for an amount that is above the jurisdictional limit of all lower courts.

**AS FOR A SIXTH CAUSE OF ACTION:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

92. Plaintiff re-alleges each of the proceeding causes of action as though fully set forth in each of the subsequent causes of action.
93. The above-described conduct by Defendant MOULTRY of prosecuting without probable cause by destroying evidence, and coercion of a witness against Plaintiff to justify why Defendant arrested him, was outrageous, atrocious and so extreme in degree to go beyond all possible bounds of decency, and utterly intolerable in a civilized community.
94. Defendant MOULTRY's conduct was intentional, wanton and reckless and was done with a total disregard of the risks to plaintiff's health and safety.

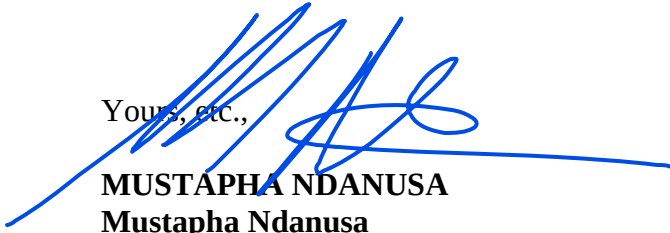
95. As a direct and proximate result of the acts alleged above, Plaintiff suffered severe emotional distress, humiliation, mental anguish, and physical distress.
96. Defendant MOULTRY's acts alleged above were willful, wanton, flagrant, malicious, and performed with a total disregard for Plaintiff's health safety and welfare and justify the award of punitive damages.
97. As a direct and proximate result of such acts, Defendant MOULTRY deprived plaintiff of his rights under the laws of the State of New York.

PRAYER FOR RELIEF

98. **WHEREFORE**, the Plaintiff respectfully request judgment against the Defendants as follows:
- a. That he be compensated for violation of his constitutional rights, pain, suffering, mental anguish and humiliation for causes of action one through six;
 - b. That he be awarded punitive damages against the individual Defendant; and
 - c. That he be compensated for attorneys' fees and the costs and disbursements of this action; and
 - d. For such other further and different relief as to the Court may seem just and proper.

Dated: Brooklyn, New York
October 23, 2020

Yours, etc.,


MUSTAPHA NDANUSA

Mustapha Ndanusa

Attorney for Plaintiff

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VERIFICATION

STATE OF NEW YORK)
 : SS.:
COUNTY OF NEW YORK)

CHRISTEN CONYERS, being duly sworn deposes and says:

That I am the plaintiff in this matter. That I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true.

CHRISTEN CONYERS



Sworn to before me this
23rd day of October, 2020



NOTARY PUBLIC
JERISHAMIR TORRES
NOTARY PUBLIC-STATE OF NEW YORK
No. 01TO6378938
Qualified In Bronx County
My Commission Expires 08-06-2022